

6. 25CV03377 Li, Yi v. Crew Enterprises, LLC et al.

EVENT: Plaintiff's Motion to File a Third Amended Complaint

Plaintiff's Motion to File a Third Amended Complaint is GRANTED. The Proposed Third Amended Complaint attached to the motion is deemed filed. However, no further amendments will be permitted until Defendants have had an opportunity to demurrer to the pleading, which they are statutorily entitled to do.

Previously, we granted Defendant's motion to set aside the default. As part of that order, we required Defendants to file their demurrer within 10 days of that 4/22 ruling. Defendants complied, and filed a demurrer on 4/28 which set a hearing date for June 17. However, several days before the demurrer was filed, Plaintiff filed this motion for leave to file a third amended complaint.

As a result, the pleading has become a moving target in this case. In light of the Court's ruling granting the motion to file a Third Amended Complaint, the demurrer to the Second Amended Complaint scheduled for June 17, 2026 at 9:00am is vacated as moot. Defendants may file a responsive pleading to the Third Amended Complaint within the timeframe prescribed by the Code of Civil Procedure. Again, the Court emphasizes no further amendments will be permitted until Defendants have filed a responsive pleading, and if that responsive pleading is a demurrer, no further motions to amend will be considered until the hearing on the demurrer has concluded.

The Court will prepare the order.

7. 25CV03743 Iorg, Aria v. Deus Lux, Inc

EVENT: Petition for Approval of Minor's Compromise

Petition for Approval of Minor's Compromise is GRANTED. The Court will sign the proposed orders.

8-9. 25CV05033 Wells Fargo Bank, N.A. v. Bassow, Madison

EVENT: (1) Plaintiff's Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted

(2) Case Management Conference

Plaintiff's Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted is GRANTED. The Court will sign the proposed order.

10. 26CV00449 Layman, Zeke v. Autumn Creek Post Acute et al

EVENT: Second Amended Petition for Alternative Writ of Mandate and Damages

The hearing is continued to July 22, 2026 at 9:00am.

The Second Amended Petition, which was filed after the previous hearing, clarifies that Autumn Creek Post Acute is a DBA, and that the legal entity is Chico Heights Rehabilitation & Wellness Centre, LP, a California Limited Partnership. This information clarifies the applicable statute of service of summons and related documents – CCP 416.40.

CCP 416.40. Service on unincorporated association, general or limited partnership

A summons may be served on an unincorporated association (including a partnership) by delivering a copy of the summons and of the complaint:

(a) If the association is a general or limited partnership, to the person designated as agent for service of process in a statement filed with the Secretary of State or to a general partner or the general manager of the partnership

[Emphasis Added]

The proofs of service filed by Petitioner do not indicate whether the person served is the agent for service of process or a general partner or general manager for purposes of CCP 416.40. The hearing is continued for Petitioner to serve the Summons, Second Amended Petition, the Memorandum of Points and Authorities, and notice of the July 22, 2026 hearing in compliance with CCP 416.40. The proof of service should indicate whether the person served is the designated agent for service of process, a general partner, or the general manager.